

MEMORANDUM TO THE FILE

Subj: USE OF OTHER THAN FULL AND OPEN COMPETITION FOR AN ACQUISITION UNDER THE SIMPLIFIED ACQUISITION THRESHOLD

IDENTIFICATION OF SOURCE:

Vendor Name: Zuken USA Inc.

Vendor City/State: Westford, MA

Cage: 1ROG2

Total Dollar Value: [REDACTED]

1. FAR 13.106-1(b)(1)(i) states for purchases not exceeding the simplified acquisition threshold, Contracting Officers may solicit from one source if the Contracting Officer determines that the circumstances of the contract action deem only one source reasonably available (e.g., urgency, exclusive licensing agreements, brand-name or industrial mobilization).

2. As required by FAR 13.106-3(b)(3)(i), this memorandum explains the absence of competition for this acquisition, as only one source will be solicited for this requirement (or for a portion of the requirement) and the requirement is not expected to exceed the simplified acquisition threshold.

II. DESCRIPTION OF ITEM OR SERVICE:

Provide a description of the item or service required, to include its intended use, the name of the required source or brand name, and the required delivery date/period of performance.

The Zuken E3.Series of products provides the Avionics Branch of the [REDACTED] Navigation, and Control Division with new configuration management capability for the Crane Common Hardware-in-the-Loop simulator. Specifically, the base software, in conjunction with select additional packages, creates industry standard wiring diagrams needed to facilitate operations of the Avionics Branch and its national partners. Two floating perpetual licenses and a license server will be installed on computers in the Avionics Branch [REDACTED] to provide general and flexible access to Zuken for any personnel working on Avionics Branch projects that require the software.

Zuken USA Inc., RDD: April 30 2025,
[REDACTED]

III. THE DETERMINATION FOR USE OF OTHER THAN FULL AND OPEN COMPETITION IS BASED ON THE FOLLOWING (select applicable area below to open specific form)

- ☒ A. ONLY ONE RESPONSIBLE SOURCE
- ☐ B. BRAND NAME
- ☐ C. UNUSUAL AND COMPELLING URGENCY

A. ONLY ONE RESPONSIBLE SOURCE (select all that apply):

1. RESTRICTIVE RIGHTS. The source has established proprietary rights, limited rights in data, patent rights, copyrights or secret processes in the item or service required.

2. EXCLUSIVE LICENSING AGREEMENTS. The item or service is only available from the Original Equipment Manufacturer (OEM), or there is only one authorized distributor or technical representative for the OEM.

3. OTHER REASONS. Other reason not identified above. Provide details on mission impact if requirement is not solicited from only one source.

Supporting customer need requires NSWC Crane to mirror software being used by national partners. In this instance, failure to procure Zuken software prevents NSWC Crane from performing essential collaboration efforts with national partners to support our common customer. Procuring Zuken Software requires procuring it through Zuken USA because there are no other vendors. Zuken USA is the publisher of the software and does not use distributors or resellers for the software in America. They are the only authorized dealer. Therefore, no other method to procure Zuken exists. Consequently, the required funding and time is unrealistic to locate another program that meets customer need, convince national partners to change software, and recreate all current documentation.

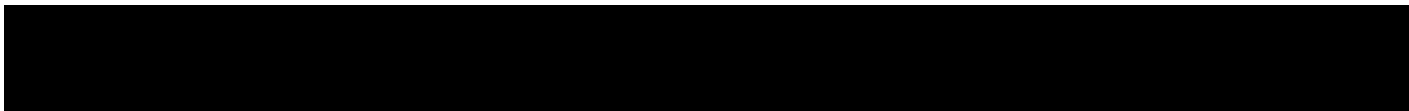
B. BRAND NAME. Item required must be a brand name product, or feature of a product, particular to one manufacturer.

C. UNUSUAL AND COMPELLING URGENCY. The supplies or services are of such unusual and compelling urgency that the Government would be seriously injured unless the agency is permitted to limit the number of sources from which it solicits, bids, or proposals. Urgent requirements are supplies or services that will result in a work stoppage, or are mission critical and the routine processing time would result in injury to the Government. The determination that the procurement for the above item/service is an urgent and compelling requirement is based on the following:

1. Date on which the requirement was first identified:
2. Required delivery date/period of performance
3. Explanation of why delivery/commencement of services by the date mentioned above is required:
4. If appropriate, include any additional pertinent information.

IV. CERTIFICATION/APPROVALS:

A. Technical / Requirements Certifications: I certify that the facts and representation under my cognizance which are included in this justification are complete and accurate to the best of my knowledge and belief.



Signature

Name (Printed) / Phone #

Date

B. Certification / Approval

Upon the basis of the above statements and information justification, I hereby approve, as the Contracting Officer, the solicitation of the proposed procurement(s) using other than full and open competition.

WESSEL.DANIELE.
MARIE.

Digitally signed by
WESSEL.DANIELE.MARIE

Date: 2025.03.17 10:42:46 -04'00'

Contracting Officer Signature

Name (Printed) / Phone #

Date